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In last days of session, late or absent Assemblymembers called out

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(The Center Square) – Outgoing Assemblymember Stan Ellis, R-Bakersfield, told The Center Square this week that he estimates that California's taxpayers pay roughly $40,000 an hour for state politicians to conduct the business of governing the Golden State.

That poses a problem when members of the state assembly talk for an hour on resolutions that have little to no impact, and is a waste of taxpayers' money, he said.

"We came to the floor at 9 o'clock, nobody gets there until 10, everybody's B.S.'ing, so nothing gets done from nine to 10," Ellis said of his first months in the Assembly after winning his seat in a February 2025 special election. "Then we do resolutions on Butterfly Day and Rice Day."

Some resolutions are important, Ellis added, but that spending so much time talking about such resolutions is not a good use of taxpayers' money.

"I calculated my staff, my salary, I calculated per-diem, I added it all up for all the assemblymembers," Ellis said. "I came up with a number of $35,000, $40,000 an hour that we are spending of the taxpayers' money to do resolutions and people showing up for work."

The one-time assemblyman said that since he doesn't know how many Assembly services staff members there are and what the amortized cost of rent could be on the capitol, he could be off by as much as 10% to 20%, he added.

"There was quite a bit I missed," Ellis said. "So I estimated some things."

Ellis also said that members of the Assembly often don't show up for regularly-scheduled floor sessions on time. Assembly floor sessions are often scheduled for Mondays and Thursdays every week of the legislative session.

"I have suggested if you don't show up on time, you should not get your per-diem," Ellis said in a Thursday interview this week.

"Per diems" refers to what legislators are paid every day they are in Sacramento to conduct the business of government, like voting on bills and attending committee meetings.

On Friday, tardy members of the California state assembly were called out on the Assembly floor on one of the last days for politicians to vote on legislation for the year. The deadline to pass legislation this year is Aug. 31, according to the 2026 legislative calendar.

In a floor vote Friday morning on an elections bill authored by Assemblymember Gail Pellerin, D-Santa Cruz, it became apparent that several members of the assembly were not present and had not yet arrived in the assembly chambers for the 9 a.m. floor session.

Members who did not vote on the first bill of the day included Assemblymembers Joaquin Arambula, D-Fresno, Rebecca Bauer-Kahan, D-San Ramon, Steve Bennett, D-Oxnard, Isaac Bryan, D-Los Angeles, Laurie Davies, R-Oceanside, Heath Flora, R-Ripon, Jesse Gabriel, D-Encino, Mike Gipson, D-Gardena, Jeff Gonzalez, R-Indio, Josh Hoover, R-Folsom, Alexandra Macedo, R-Tulare, Tina McKinnor, D-Inglewood, Stephanie Nguyen, D-Elk Grove, Darshana Patel, D-San Diego, Celeste Rodriguez, D-Arleta, Robert Rivas, D-Salinas, Kate Sanchez, R-Rancho Santa Margarita, Avelino Valencia, D-Anaheim and Greg Wallis, R-Rancho Mirage.

It was not immediately clear who was present in the Assembly chambers and abstained from voting on the first bill of the day and who was not there.

"The on-time caucus has been made aware of a rule that if you are more than 30 minutes late, you have to explain yourself to the group," Assemblymember Heather Hadwick, R-Redding, said on the Assembly floor. "Is that true?"

Hadwick's question, addressed to Assembly Speaker Pro Tempore Josh Lowenthal, D-Long Beach, who led the Assembly floor session on Friday morning, was asked after a vote on Pellerin's bill was delayed because several members of the Assembly had not yet arrived for the 9 a.m. floor session.

"We will explain what's in the rules," Lowenthal said at the Assembly chamber dais. "Part of the rules we have all voted on and agreed to include Section 110, and I will read those now. If a member is not recorded on the attendance role within 30 minutes after the scheduled start of the session, the member shall stand up before the assembly and explain the reason why the member is late before the member is recorded on the roll call for any vote."

If a member does not explain the reason for being late, any other member may raise a point of order, Lowenthal continued.

"Under this rule, the tardy member's vote may not be recorded until an explanation is made," Lowenthal said. "The point of order may be made today."

As Lowenthal read from the rules, members of the Assembly clapped. Later in the floor session on Friday, Minority Floor Leader Josh Hoover, R-Folsom, asked for fellow Republican Jeff Gonzalez, R-Indio, to explain why he was late to Friday's floor session. Since Gonzalez had already voted on bills after arriving late, Lowenthal took issue with Hoover's push for Gonzalez to explain why he was late.

"All members, I would like you to listen to this," Lowenthal said. "We have already recorded votes today, so by the nature of this point of order, I'm going to say that your point is not well taken. The precedent of what you're standing up and asking for is an important one."

Lowenthal also said that many other assemblymembers were frustrated about so many fellow members arriving late, and often voiced that other members don't consider their time to be as important.

"That's how people feel. Therefore, that point of order should be made before that member has taken a vote and this chair will honor that," Lowenthal said. "Please arrive on time, respect your colleagues' time. And if you aren't going to be here on time, be ready to explain yourself before the state of California."

No member of the Assembly explained why they were late during the floor session on Friday morning.

"On days like today, where members have flights to catch, those who don't live nearby, it's problematic, because there's a certain amount of business that needs to get done before the end of session," Lowenthal told The Center Square after the floor session adjourned on Friday. "Legislators are very busy people, and to say they're not arriving to the floor on time isn't an affront on their priorities whatsoever. We get pulled in a million different directions, from our district, from the media, from other things that are happening around the Capitol, including key stakeholder meetings, negotiations on bills, and so forth."

While his statements on the Assembly floor on Friday were not meant to criticize any one member of the Assembly, Lowenthal said it's important to prioritize the work the Assembly does as a whole sometimes.

"It's really an acknowledgment that there are moments in time where the work of the body supersedes other priorities, and this is a healthy reminder we all need to buckle down," Lowenthal said.

Lowenthal added that the Assembly can't start floor sessions until a quorum, or a majority of the Assembly, is present. He also added that members of the Assembly have to be acknowledged and seen by Assembly staff, and after roll is taken, they are able to go out into the hallway, the portico or other places around the Assembly chambers. He and two staffers for Rivas and Gabriel confirmed that the speaker of the Assembly is able to vote on bills from the speaker's office.

Gabriel and Gonzalez were not available to answer questions from The Center Square on Friday. Assembly Majority Leader Cecilia Aguiar-Curry, D-Davis, wasn't available to answer questions before the Assembly floor session on Friday.

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